

or devisor, or other person or persons, or for *raising portions* for any child of the settlor or devisor, or any person *taking an interest* under the settlement or devise, or to any direction touching the produce of *timber or wood*." The words "any other person or persons" authorize a grantor, settlor, or devisor to provide for the debts of any stranger whomsoever (*d*); and the exception in the statute extends to *liabilities* of a testator though no *debt* had actually accrued at the time of his death (*e*). By children must, of course, be understood exclusively legitimate children (*f*). And the accumulation to be protected by the clause must be a provision for raising portions out of the *corpus*, not an accumulation of the *corpus* itself, for the purpose of making a gift of the aggregate fund (*g*), and must be a provision for children certain, and not a chance limitation in favour of any child that may happen to survive certain persons not necessarily standing in the relation of parent and child, but uncles or aunts, &c. (*h*). By "taking an interest under the devise" is meant a *substantial* interest. A small annuity, for instance, to the parent, would not justify an accumulation of the residue of the rents beyond the limits of the Act for raising portions for the children (*i*); and it was once considered that it was necessary that an interest should be taken not merely under the *will* generally, but under the *particular* gift, devise or bequest, which contained the provision for accumulation (*k*); but this view has been since overruled, so that now, if the person take a substantial interest in any property, under the will, it is sufficient (*l*).

(*d*) See *Barrington v. Liddell*, 2 De G. M. & G. 497; 10 Hare, 415.

(*e*) *Varlo v. Faden*, 27 Beav. 255.

(*f*) *Shaw v. Rhodes*, 1 M. & Cr. 135, see 159.

(*g*) *Eyre v. Marsden*, 2 Keen, 504; *Bourne v. Buckton*, 2 Sim. N. S. 91; *Edwards v. Tuck*, 3 De G. M. & G. 40; *Jones v. Maggs*, 9 Hare, 605; *Wildes v. Davies*, 1 Sm. & Gif. 475; *Watt v. Wood*, 2 Drew & Sm. 56; and see *Beach v. St. Vincent*, 3 De Gex & Smale, 678. In *Burt v. Sturt*, 10 Hare,

427, this was said to be "a shadowy distinction."

(*h*) *Burt v. Sturt*, 10 Hare, 415.

(*i*) *Shaw v. Rhodes*, 1 M. & Cr. 159; and see *Bourne v. Buckton*, 2 Sim. N. S. 91; but see *Evans v. Hellier*, 5 Cl. & Fin. 127; *Barrington v. Liddell*, 2 De G. M. & G. 500; *Edwards v. Tuck*, 3 De G. M. & G. 63.

(*k*) *Bourne v. Buckton*, 2 Sim. N. S. 91, see 101; *Morgan v. Morgan*, 4 De Gex & Smale, 164.

(*l*) *Barrington v. Liddell*, 10 Hare,